



**DIGITAL
RIGHTS
WATCH**

**Submission to the Joint Select
Committee on Artificial Intelligence**

regarding the

**Joint Select Committee on Artificial
Intelligence**

September 2026

Who we are

Digital Rights Watch is a charity founded in 2016 to promote and defend human rights as realised in the digital age. We stand for privacy, democracy, fairness, and freedom. Digital Rights Watch educates, campaigns, and advocates for a digital environment in which rights are respected, and connection and creativity can flourish. More information about our work is on our website: www.digitalrightswatch.org.au.

Acknowledgement of Country

Digital Rights Watch acknowledges the Traditional Owners of Country throughout Australia and their continuing connection to land and community. We acknowledge the Aboriginal and Torres Strait Islander peoples as the true custodians of this land that was never ceded and pay our respects to their cultures, and to elders past and present.

Statement on the use of AI in this submission

Digital Rights Watch confirms that no generative AI was used in the creation of this submission. Any mistakes herein are genuine human errors and any useful policy ideas are the result of genuine human thought and creativity.

Contact

Tom Sulston | Head of Policy | tom@digitalrightswatch.org.au

Elizabeth O'Shea | Chair | lizzie@digitalrightswatch.org.au

General Position

Digital Rights Watch (DRW) welcomes the opportunity to support the work of the Joint Select Committee on Artificial Intelligence.

This select committee is an extremely welcome development and an important opportunity for bipartisan discussion about these important topics. Artificial intelligence is a large and complex issue that has effects on vast swathes of Australian society, for good and ill. Current regulatory approaches have not been sufficient to protect human rights, and so it is encouraging to see new approaches for collaborative parliamentary scrutiny over the AI industry.

Our position on AI is that it must work for all Australians, not just be an avenue by which the interests of large American tech corporations are promoted over the wellbeing of Australian workers, creatives, children, and other cohorts.

We are sceptical of the claims of AI benefits that are regularly provided by companies selling AI products and services, and would like to see Australia following an evidence-led approach that promotes both the human rights of individuals as well as curiosity for how the technology might be used to better our society.

We have provided comments on only a selection of the terms of reference, in the name of brevity. DRW would welcome the opportunity to present evidence to the committee if this is of use to your work.

Commentary on Committee Questions

(c) the opportunities of AI and robotics to drive research and innovation, new industries and business ...

In our recent report on the use of [AI scribes in health settings](#), we have uncovered some serious risks and harms that AI poses to healthcare in Australia. We found that AI companies are exposing Australians to digital services which are unregulated, untested, and often used without consent.

During this research, we found AI scribe companies operating in a regulatory vacuum, driven by a lack of government direction to regulators who then fail to assert their jurisdiction.

This situation is not unique to scribes, but is replicated across the Australian economy, where AI companies can move faster than the governments and regulators that oversee them. We can see this replicated clearly in the data centre space, where policy-makers and regulators are fast-tracking construction permits despite significant local community concerns, getting their projects approved before national rules are finalised

(h) the adoption of AI by Commonwealth departments and agencies to improve services for Australians, and the transparency and accountability measures that apply to AI use

The Robodebt scandal was enormous and costly, both in financial terms and human suffering. One of the recommendations made by the [Robodebt Royal Commission](#) was that the Commonwealth should introduce a consistent legal framework for automation in government services. The Royal Commission also recommended privacy reform, to ensure decisions were being made based on high quality personal information, obtained with meaningful consent. DRW is concerned that rather than learning from Robodebt, the use of automated decision-making tools (ADM) will instead repeat the failures. Clear rules for the use of ADM wouldn't just improve the experience of people who use government services, they would also upskill the public servants and protect decision-makers who want to do the right thing.

The government has promised to propose a consistent legal framework for the use of ADM in government, and has [claimed](#) it was an important priority for making safe AI. This framework is reportedly still [in](#)

development. While we wait for a draft, we have seen automated decision-making systems rolled out in other social services, like aged-care and the NDIS. The lack of clarity and guardrails creates a risk that vulnerable people will end up paying a price for inflexible and poorly-designed systems.

We urgently need strong guardrails for government use of ADM. We need transparency in how these systems are used, including the data inputs (and data excluded from inputs), and decision points. Human discretion has to be treated as paramount, with access to appropriate review in a timely and cost-effective manner. Decision-makers need to have an effective feedback loop, so they can tell if they are getting it right without having to wait for large-scale human harm and a Royal Commission. Good decision-making judgement comes from making both straightforward decisions as well as more marginal and complex calls, rather than outsourcing it all to a machine.

(i) the adequacy of Australia's existing laws and regulatory frameworks as they apply to AI ...

We urgently need to progress privacy reform, and we are grateful to see progress on this issue in recent weeks by the government.

Privacy reform is [hugely popular](#): 93% of Australians say protecting personal information is important to them, and 87% say they are more concerned about their privacy than they were five years ago. Taking personal responsibility for our data footprint is practically impossible, especially in the age of AI. Tick-a-box consent is a broken model. Australians rate protecting personal information as their [number one priority](#) when it comes to AI regulation.

Imposing strong legal protections over personal information is one of the most important and impactful ways to reshape technology in the interests of the many, not the few. Data-extractive business models give rise to all sorts of negative downstream consequences, such as extremist and misleading content, addictive algorithms, and careless product design. A lack of transparency and accountability with respect to the data sets on which AI products are trained has significant affect on its outputs. Privacy law has the capacity to target reform at the source of the problem – the

collection, use and storage of personal information – rather than addressing low-quality outputs after a model is built.

There are also improvements to be made in strengthening consumer protection laws, including in respect of AI generated scams and misleading AI generated content. We also think the current proposal for a digital duty of care has real potential to make some AI products and services safer.

(j) the interaction of AI with existing intellectual property and copyright laws ...

We defer to colleagues in the copyright space to comment in detail on this area.

However, we call on the committee to recognise that artistic creative agency is inherent in all Australians, not just those who earn a living from the creative industries. For this reason, the use of human-made artistic works by AI systems cannot be reduced simply to licensing regimes and fees. AI corporations must be compelled to seek consent from, and pay compensation to, individuals for the use of their creative work in their models.

Companies must be compelled to remove from their models content for which they do not have consent, even if they find this to be an engineering challenge. Penalties for non-compliance need to be set such that removing the un-consented content is an appealing option for AI corporations.

(k) the risks and harms arising from AI, including fraud and scams, deepfakes and risks to the safety and wellbeing of children and vulnerable Australians

The harms of AI are not felt equally across Australian society. Rather, they are visited more frequently and more severely on those members of society who are already rendered vulnerable and by exacerbating existing inequalities. We see this in a number of domains.

Facial recognition is a type of AI technology that is applied to the whole community but that works more effectively for white people than for other ethnicities. The effect is that police or corporate use of facial recognition to identify already-known criminals more frequently [incorrectly-matches](#)

[racial minorities](#), leading to unwanted and [unwarranted police interactions](#) with overpoliced populations.

[Police use of AI is especially problematic](#), as we discuss in detail on our website.

Deepfakes are overwhelmingly used by men to [silence and control women](#) - both those known personally to the perpetrator and those in the public eye with whom they have no relationship. Given the speed and scale of digital transformation, there is an urgent need to [embed human rights and gender-sensitive frameworks](#) throughout the AI system lifecycle: from conception and design through development, deployment, evaluation, and regulation.

AI, as rolled out by hyperscale AI corporations, is a technology to serve the hyperscale AI corporations and their billionaire owners. It is they who will reap the benefits, while the harms are felt by the rest of us. The less like a billionaire a person is, the more likely they are to be harmed by AI.